

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Rolando Vasquez	Team: Squad #08	CCRB Case #: 201504318	☐ Force ☒ Discourt. ☐ U.S. ☐ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Sunday, 05/24/2015 6:00 PM	Location of Incident: 92-15 Parsons Boulevard	18 Mo. SOL 11/24/2016	Precinct: 103
Date/Time CV Reported Thu, 05/28/2015 2:48 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 05/28/2015 2:48 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Joseph Camisa	14898	955779	103 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Joseph Camisa	Discourtesy: PO Joseph Camisa gestured rudely toward § 87(2)(b)	A . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint on May 28, 2015 via phone with the CCRB.

On May 24, 2015 at approximately 6:00 p.m., § 87(2)(b) was standing outside of 92-15 Parsons Boulevard in Queens. § 87(2)(b) was standing in front of his van. § 87(2)(b) saw PO Joseph Camisa enter a building down the street. Five minutes later, PO Camisa returned and entered the passenger seat of a marked police car. The police car drove in the direction of § 87(2)(b). As the car was passing § 87(2)(b), PO Camisa allegedly raised his middle finger at § 87(2)(b) (Allegation A). The police car continued driving down Parsons Boulevard.

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation because § 87(2)(b) stated during his in-person interview that he was filing a lawsuit and had filed a Notice of Claim regarding this incident (Board Review 01).
- On June 30, 2015, The NYC Office of the Comptroller responded that that no Notice of Claim was filed regarding this incident (Board Review 02).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s 16th complaint with the CCRB § 87(2)(g) (Board Review 05).
- PO Camisa has been a member of the service for one year. § 87(2)(b) (Board Review 06).

Findings and Recommendations

Allegation A - Discourtesy: PO Joseph Camisa gestured rudely toward § 87(2)(b)

§ 87(2)(b) and PO Camisa have a history of interactions which both parties acknowledged during their interviews (Board Review 01, Board Review 07). § 87(2)(b) On May 21, 2015, § 87(2)(b) had a court appearance regarding summonses issued to him by PO Camisa. During this court appearance, § 87(2)(b) told the judge that PO Camisa was a "liar" (Board Review 01).

§ 87(2)(b) testified that he was standing in front his van which was parked in front of 92-15 Parsons Boulevard in Queens (Board Review 01). This location is a loading area for commuter vehicles. § 87(2)(b) had been standing in this location for approximately 15 minutes. § 87(2)(b) saw PO Joseph Camisa exit marked RMP 4677 and enter a building down the street near 92-21 Parsons Boulevard. PO Camisa returned five minutes later and entered on the passenger side of the police car. The police car drove in § 87(2)(b)'s direction. As the police car

drove past § 87(2)(b) PO Camisa allegedly raised the middle finger on his right hand at § 87(2)(b) § 87(2)(b) did not believe that PO Camisa's partner would have seen this gesture because he was focused on driving. Nothing was said between § 87(2)(b) and PO Camisa during this incident.

A TARU camera operates directly above the location where § 87(2)(b) claimed to be standing. The footage from this camera was received and reviewed. The video footage did not capture any part of this incident. The incident, as described by § 87(2)(b) occurred in the street which would have been out of view of the camera. § 87(2)(b) could not be seen in any of the footage. No police officers or police cars appear in the footage.

PO Camisa was identified as the subject officer by § 87(2)(b) who recognized him from previous interactions, including § 87(2)(b) a court appearance (Board Review 01). § 87(2)(b) was unable to provide a detailed physical description of PO Camisa's partner. During his CCRB interview, PO Camisa could not identify who his partner was on the incident date (Board Review 07). PO Camisa's regular partner had a court appearance on the incident date. PO Camisa did not note who his partner was in his memo book (Board Review 08). Requested NYPD documents did not help identify PO Camisa's partner.

PO Camisa did not have any entries in his memo book regarding this incident (Board Review 08). However, when PO Camisa was notified about his appearance at the CCRB and learned that § 87(2)(b) was the complainant he made the following entries on the fly page. PO Camisa noted § 87(2)(b) a court appearance in early May. § 87(2)(b) left the court appearance saying that PO Camisa was a "crooked ass cop" and that he should "walk slow on the avenue." PO Camisa interpreted the latter remark as a threat. PO Camisa noted that PO Camisa and § 87(2)(b) saw each other on the incident date in this complaint, stared at each other, and that he pointed out § 87(2)(b) to fellow officers.

PO Camisa testified that he was the operator in marked RMP 4677 on the incident date (Board Review 07). PO Camisa parked in front of a subway station located at the intersection of Parsons Boulevard and Archer Avenue. PO Camisa entered the subway station to use the bathroom. Upon his return, PO Camisa spoke with two footpost officers who he could not identify. The officers asked PO Camisa why there was a man staring at him. PO Camisa pointed to § 87(2)(b) and explained to the officers that he was the man who had made threatening remarks to him in court in the beginning of May. PO Camisa returned to his vehicle and drove in the direction where § 87(2)(b) had been standing. § 87(2)(b) was no longer in sight. PO Camisa did not raise his middle finger at § 87(2)(b) PO Camisa's partner did not raise his/her middle finger at § 87(2)(b).

Patrol Guide procedure 203-09 states that officers must be "courteous and respectful" in their conduct with the public (Board Review 09).

§ 87(2)(g)

_____. Therefore, it is recommended that **Allegation A** be closed as **unsubstantiated**.

Pod: 8

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date